

Lowell Police Department

9314245

In all cases of death that require the attention of the Medical Examiner, and in cases of serious accidents where death is liable to result, the following form shall be filled out by the officer attending the same and immediately forwarded to the Superintendent of Police.

RECEIVED

John J. Sheehan, Superintendent of Police

NOV 6 / 1993

LOWELL POLICE DEPT.

Police Route No. 6 Date 11-6, 1993
 Full name of person GARY WEEEMS
189 MIDDLESEX ST LOWELL MASS.
 Age 33; Height 5'10"; Weight 160; Comp. BLACK; Hair BLACK
 Eyes BROWN; Beard or Mustache MUSTACHE; Occupation UNEMPLOYED
 Visible marks or scars on body TRACK MARKS ON ARMS

Description of clothing and property found on body BROWN COAT, T-SHIRT,
BLUE JEANS, BLACK SNEAKERS, WALLET CONTAINING I.D. AND PERSON
PAPERS

Place of Accident, or where body was found 291 SUMMER ST. (REAR)

Date of accident or death 11-6-93 Time 8:14 A.M.
 Nature of accident or death ALCOHOL AND/OR DRUG OVERDOSE

Full name of person who discovered body KENNETH NEWHALL
189 MIDDLESEX ST. LOWELL

Person or body moved to (BODY AND SCENE SECURED AT THIS TIME.) Medical Examiner notified
 Conveyance used

Name of Physician called
 Names of officers connected with the removal of body

Full name of nearest relative or friend of deceased NADINE WEEEMS
7 WALTER TERRACE SOMERVILLE, MASS.

CB, Sheehan

name and addresses of other witnesses, with substance of their statements

At approx. 8:14 AM., reporting officer responded to
Summer St. in response to an individual locating a
DECEASED friend. KENNETH NEWHALL STATED HE HAD BEEN DRINK-
ing with victim since approx. 4:00 P.M. 11/5/93 until
3:30 AM. 11/6/93. NEWHALL STATED HE LEFT FOR APPROX. 4 1/2
HOURS AND RETURNED TO WHERE THEY HAD BEEN DRINKING
ALL NIGHT. DECEASED VICTIM WAS LOCATED FACE DOWN IN
REAR LOT BY NEWHALL, AT WHICH TIME HE CONTACTED POLICE.
AT THIS TIME, THERE APPEARS TO BE NO SIGNS OF Foul
PLAY AND DEATH OCCURRED BY NATURAL CAUSES.

P.M. Daniel R. Brady #153
Police Officer of Lowell
Sgt William M. Lynde #72

(Not to be filled out by Officers)

No.	
Name	
Date of accident	
Nature of accident	
Date of death	
Inquest	
Judge	
Verdict	

LIEN AND AUTHORIZATION

I, GARY WEEMS, in consideration of services rendered to me by Trinity E.M.S., Inc. ("Trinity") hereby agrees as follows:

Lien

I hereby grant a voluntary lien to Trinity on any amount received due to any settlement, claim, or judgment arising out of any claim based on any accident or illness for which services were rendered by Trinity, for the payment of any and all sums which may be due and owing to Trinity for such services rendered.

Assignment of Cause of Action

In the event any insurance company is obligated by contractual agreement to make payment to me or to Trinity relating to any obligation arising under this agreement, I hereby assign and transfer to Trinity any claim or cause of action that I have or may have in the future against any such company (the name(s) of which is/are believed to be correctly set forth under pertinent data below), and authorize Trinity to prosecute any such claim or action as Trinity sees fit. Trinity shall be authorized to compromise, settle or otherwise resolve any such claim or action as Trinity may see fit. Trinity shall be authorized to compromise, settle or otherwise resolve any such claim or action as Trinity may see fit.

Authorization to Pay Directly

TO _____
(Name of attorney and/or insurance company)
In consideration of services rendered by Trinity, I authorize and direct the payment by you, my attorney, to Trinity of any sum now or hereafter owed, out of the proceeds of any settlement, claim, or judgment, and/or by any insurance company obligated to reimburse me for the charges for services rendered otherwise obligated to make payment to me or Trinity based in whole or in part upon the charges made for its services.

- (a) That there is no insurance company obligated to pay for the services, or if any insurance company refuses to acknowledge an assignment to the Trinity or to otherwise indemnify Trinity; or
(b) If a liability claim exists, and my attorney refuses to agree to protect Trinity's interests, or if I have not engaged the services of any attorney;

then payment for services rendered by Trinity shall be paid in full within sixty days of the date on which services were rendered.

Authorization to Release Information

Trinity shall be authorized to release any and all information it may deem appropriate to any insurance company, attorney, or adjuster in order to process any claim for reimbursement of charges incurred by me as a result of professional services rendered by Trinity. Furthermore, I hereby release Trinity from any claim or consequence arising from such release of information.

Power of Attorney

I hereby make, constitute, and appoint Trinity as my attorney-in-fact for me and in my name, place, and stead, to do and perform all acts, deeds, matters, and things which Trinity may deem appropriate or necessary to obtain or insure the payment to Trinity of amounts owed or which will be owed for services rendered to me by Trinity, including, without limitation, to complete and file any form, application or other document with any person or entity to obtain such payment, and to endorse, deposit, or process any check or other payment received under any insurance policy, settlement, agreement, judgment, or from any other source.

Patient Signature 1053/ UNABLE TO SIGN Date 6 NOVEMBER 1993
Witness [Signature] Date 6 NOVEMBER 1993

MEDICARE NON-EMERGENCY TRANSPORTS

I have been notified by the staff of TRINITY E.M.S. Inc. that this transport may be considered NOT MEDICALLY NECESSARY by MEDICARE. I understand that I may be responsible for payment of this bill should Medicare deny.

Date 6 NOVEMBER 1993

AMBULANCE LIABILITY RELEASE

I, _____ of my own free will do hereby refuse treatment by TRINITY E.M.S., Inc. and do hereby waive any claims against TRINITY E.M.S. Inc. AND ITS EMPLOYEES for any injury caused to me by the refusal of treatment or transportation to a medical facility.

Patient's Signature: _____ Date _____

Witness #1 _____ Witness #2 _____

ADDITIONAL INFORMATION

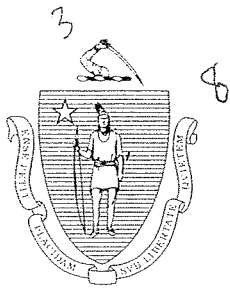
UPPER LIP. NO INDICATIONS OF FOUL PLAY NOTED TO ANTERIOR OR POSTERIOR
OF BODY. PT. I.D. COPIED (FOUND IN COAT POCKET). PT REFERRED → LPD.

1053 (CP)



9314245

ACCOUNT NUMBER		EMERGENCY MEDICAL SERVICES REPORT		T.E.M.S. NUMBER		
TYPE OF CALL EMERGENCY		DISPATCH LOCATION BASE		DAY OF THE WEEK ☐ S ☐ M ☐ T ☐ W ☐ T ☐ F ☐ S		
HOUR		PATIENT PRIORITY ☐ 1 ☐ 2 ☐ 3 ☐ 4		CODE TO 3		
FROM 1		AMBULANCE 96				
SCENE	ADDRESS/APT#/UNIT REAR OF DIV. OF EMPLOYMENT		HOSPITAL SELECTION ☐ OTHER ☒ NEAREST FACILITY		☐ SPECIALTY REF.	
	CITY/TOWN/UNIT LOWELL		☐ PATIENT CHOICE		☐ DIVERSION	
	TRANSPORTED TO CITY		NO PATIENT TRANSPORTED - REASON			
	REQUESTED BY ☐ Local Police ☐ Local Fire ☐ State Police ☐ Other		CANCELLED BY: ☒ POLICE ☐ FIRE ☐ ALS ☐ OPERATIONS		TRANSPORT BY: ☐ POLICE ☒ OTHER M.E.	
PATIENT	PATIENT NAME GARY WEEMS		D.O.B. 11/16/66		AGE 33	
	PATIENT ADDRESS 7 WALTER TERRACE		NEXT OF KIN DONALD WEEMS		RELATIONSHIP FATHER	
	CITY/TOWN SOMERVILLE		CITY/TOWN/STATE CAMBRIDGE, MA		ZIP 02144	
	STATE MA		SEQUENCE #		RECIPIENT'S ID #	
INSURANCE	MASS HEALTH (MASS HEALTH CARD #)		LETTER		BC / BS #	
	EMPLOYED BY		ADDRESS		SUBSCRIBER SELF	
	OTHER INSURANCE		CARD HOLDER / RELATIONSHIP		BUSINESS PHONE	
	STATE		ZIP		ID #	
SELF-PAY	WORKERS COMP. INS.		ADDRESS		STATE ZIP	
MVA	OWNERS NAME AND ADDRESS (if same write "same")				REGISTRATION NUMBER AND STATE	
	NAME OF MOTOR VEHICLE INSURANCE				ADDRESS, STATE, ZIP CODE	
MEDICAL	CHIEF COMPLAINT / DIAGNOSIS D.O.A.		MEDICATIONS: ☒ UNKNOWN ☐ NONE		ALLERGIES: ☒ UNKNOWN ☐ NONE	
	HISTORY ☐ ASTHMA ☐ SEIZURES ☐ HYPERTENSION		DISPATCH LOWELL POLICE DEPT		ARR. SCENE	
	MECHANISM OF INJURY ☐ ACUTE ☐ ASSAULT ☐ BURNS ☒ CARDIAC ARREST ☐ CHILD ABUSE ☐ CARDIAC DISOR.		ARR. SCENE		LEAVE SCENE	
	☐ CHRONIC ☐ ETOH ☐ FALL > 20' ☐ FALL < 20' ☐ GSW ☐ MAJOR TRAUMA ☐ MINOR TRAUMA ☐ MEDICAL		ARR. HOSP.			
	☐ MY-PED. ☐ MVA ☐ OB/GYN ☐ OD/POISON ☐ ORTHO. ☐ PSYCH. ☐ SEIZURES ☐ RESP.					
	☐ SUICIDE ATT. ☐ SOFT TISSUE INJURY ☐ STAB ☐ TRAUMA "X" ☐ OTHER					
	SUPPLIES ☐ BANDAGING ☐ BURN SHEET ☐ CERVICAL COLLAR ☐ MONITOR/DEFIB. ☐ NASOPHARYNGEAL		DRIVER TRAINER		☒ BLS ☐ ALS ☐ ILS	
	☐ GENERATOR ☐ M.A.S.T. ☐ O2 THERAPY ☐ LPM VIA ☐ OTHER		ATTENDANT TURNER		LEVEL OF CONC.	
	☐ OROPHARYN ☐ B. KIT ☐ TELEPHONE TO					
	☐ SPUNT					
TIME		B.P.		PULSE		
RESP.		SKIN MOISTURE		SKIN TEMP		
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MAURA HEALEY
ATTORNEY GENERAL

THE COMMONWEALTH OF MASSACHUSETTS
OFFICE OF THE ATTORNEY GENERAL

ONE ASHBURTON PLACE
BOSTON, MASSACHUSETTS 02108

TEL: (617) 727-2200
www.mass.gov/ago

March 24, 2015

Jacqueline Faherty, Esq.
General Counsel
Office of Chief Medical Examiner
720 Albany Street
Boston, MA 02118

Re: Claimant: Jestinea Rebecca Weems
Date of Incident: 11/6/1993
Date of Letter: 3/4/2015

Dear Ms. Faherty:

Pursuant to M.G.L. c. 258, § 4, I am forwarding for your review and investigation the enclosed letter referenced above which was received in this office on 3/9/2015.

In forwarding this letter, we make no determination as to whether this is a proper presentment under Chapter 258. Thank you for your cooperation in this matter.

Sincerely,

Katie Dwyer
(617) 963-2549

Enc.
cc:
Jestina Rebecca Weems
95 Dictum CT.
Brooklyn, NY 11229

(All further inquiries regarding this claim should be made to Ms. Faherty at (617) 267-6767, ext. 245.)

Why didn't you send him to the funeral home

Justice Department.



LOWELL POLICE DEPARTMENT
Lowell, MA
Victim/Witness

3(a)

Date: 11/6/93 Time: 9:50 AM Tel: N/P

Case #:

My name is: KENNETH NEWHALL

Shelter

12/8/50

Occupation: Unemployed

At: N/A

Composite formed?:

I am making this voluntary statement to officer(s): Inspector Tousignant

What is the highest school grade you attended ? GED

Are you presently under a doctor's care? No

Are you taking any medication? No

Have you been drinking alcoholic beverages? Earlier today

Have you recently used any form of controlled substances? No

STATEMENT

The following statement is being given to the Police about what I observed yesterday, Friday into this morning with my friend Gary Weems.

Friday Afternoon, 11/5/93, my friend Gary and I received checks from doing some work for a Temp. Employment Service located at #189 Central St. We received the checks somewhere around 4:00 PM, Gary received \$90 something dollars while I received somewhere around \$76.00.

After cashing the checks Gary said that he was supposed to meet his wife at the train station at 4:00 PM, as she was coming from Billerica with Gary's kids. Gary's wife lives in Billerica behind Nuttings Lake.

We went to the Train Station but Gary's wife didn't show up, he then tried to call her at the house, but there was no answer. Gary became perturbed when she didn't show up and also that he was unable to contact her at home.

go get trashed." We had been drinking a little bit earlier in the day, but now we decided to continue on drinking.

Gary spent most of his check on Beer, Vodka, Rum and we just continued drinking. For a while, we were drinking over at the park, but the cops moved us along and we ended up hanging around Appleton Street, but we were then moved on by the cops again, so we went behind the Unemployment Office.

Witness(s):

[Signature]

Signature:

[Signature]

While we were drinking, we also did some drugs around 7:00 PM or so Friday night. Gary did a twenty and a bag of dope, he shot himself up with it but was fine after that. We continued drinking throughout the night until we pretty much ran out of money. I told Gary that I was going to go out canning and left him on that back porch where you found me. He was going to go to sleep while I went out canning.

I left Gary and he seemed all-right with the exception that he was pretty well trashed. I went canning and after getting a bunch of cans went over to Burn's Package Store and cashed them in for \$42.00

I went back to where I had left Gary and he wasn't on the porch, then I saw him where he was laying on the ground away from the porch. I felt him and he was ice cold. I covered him with his jacket which had been laying at his side and then I took his knife from him which I gave you and then I went and called the Police and waited for them to come.

NO
one
around
there
to check
cameras
for
time

Witness(s):

[Signature]

[Redacted Signature]

LOWELL POLICE DEPARTMENT
Lowell, MA
Victim/Witness

306

Date: 11/7/93 Time: 1:50 PM Tel: N/P

Case #:

My name is: KEVIN PURTELL

Ave. 3/1/56

Occupation: Unemployed At: N/A Composite formed?:

I am making this voluntary statement to officer(s): Inspector Tousignant

What is the highest school grade you attended ? GED

Are you presently under a doctor's care? Yes

Are you taking any medication? Yes

Have you been drinking alcoholic beverages? No

Have you recently used any form of controlled substances? NO

STATEMENT

The following information is being given to the Police about what I learned about how that guy Gary died the other morning. I learned this information Saturday Evening, Today, Sunday 11/7/93, I came to the Police Station to give the information to the Police.

Saturday evening, sometime around 5:00 PM, I'm talking with this Black Guy who I only know as "Grapes", who lives on Westford St., a blue and , on the Right hand side. Grapes is a black guy, about 35 years old, real thin, who hangs around the (Lemon Tree Store on Appleton Street.)

Anyway, I'm talking with Grapes over by Saba's Bar Saturday evening and he starts telling me this story. Grapes tells me that he, Bob Adams, Gary, a guy named Billy and a Puerto Rican named Eddie had been partying all day or most of the day Friday. Grapes said that all of them were doing dope and coke. At some point, they all ended up over at that building where Gary was found dead.

Grapes tells me that they're all partying inside this building and sometime around 2:00 AM, Gary passes out from doing all the dope that he was doing. Grapes then tells me that after passing out, Bob and Eddie tried to wake Gary up, but couldn't get him to respond. Grapes then told me that

Witness(s):

Signature:

When no-one could get Gary to wake up, Bob gives Gary a shot of coke in the arm, but Gary just dies. Grapes told me that no-one tried to get help or anything like that, after everyone realized that Gary was dead, Bob Adams dragged Gary out of the building and just dumped him face down behind the building or along the alleyway, where-ever the body was found is where Bob dumped him.

Grapes told me that after Adams dumped Gary, everyone then headed over to the Honeywell building where on Middlesex Street, where everyone hangs out.

From what I learned from Grapes, Adams is the one who told all this information to Grapes. Adams always stays at the Honeywell building, he's about 6' tall in his late 30"s, always wears a baseball hat backwards and has a gray, scruffy looking beard. He usually has a walking stick, not that he needs it, but he just has it with him. He usually eats down the Shelter and I saw him there around noon today.

Billy also hangs at the Shelter, usually out in front of the Lemon Tree or at the Insurance Company across the Street. He's skinny, maybe 5'5 maybe 37 or so, light brown hair, little moustache and wears glasses that have one of the stems missing. I believe that he also has a 6-man Jury appearance at Court on the 16th of the month as he was arrested in the Honeywell Building for B/E and Possession.

Eddie's a Puerto Rican who also hangs at the Shelter, he's also maybe 5'5, black hair, moustache, in his early 30's, he weighs maybe 150/160 pounds.

Also, the guys that I told you about, I did see them all together early Friday Afternoon, down by the Railroad tracks alongside Saba's. They were all under the bridge getting high and that guy Gary seemed all-right at the time.

Grapes also told me that Gary's pockets were inside out but I don't know for a fact if they went through his pockets or not. I do know that Gary gets \$600.00 a month from his check, he gets SSI and he gets it all in one check, once a month, but I don't know how much money he had left when he died.

which guy he's mentioned several

Witness(s): [Signature] [Redacted Signature]

LOWELL POLICE DEPARTMENT
Lowell, MA

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STATEMENT

Was Miranda card read and signed? Yes

Date: 11/8/93 Time: 11:52 AM Tel: N/P

Case #:

My name is: ROBERT ADAMS

5/19/50

Homeless

Father's name: Edward

Mother's maiden name: Floyd

Married?: N/A Spouse's maiden name:

Occupation: Unemployed

At: N/A

Composite formed?:

I am making this voluntary statement to officer(s): Inspector Tousignant

What is the highest school grade you attended ? 9th Grade

Are you presently under a doctor's care? No

Are you taking any medication? No

Have you been drinking alcoholic beverages? no

Have you recently used any form of controlled substances? No

STATEMENT

The following statement is being given to the Police about the death of my friend Gary a day or two ago. (After being Arrested this morning and brought to the Police Station) I was brought to an office where I was read my Rights, I told the cop that I understood my Rights as they have been read to me before. I then told the cop that I would talk with him and when I asked, I then signed the card to show that I knew my Rights and that I would talk with the cop about my friend's death.

I saw Gary this past Friday, around 4:30/5:00 PM at the abandoned building on Appleton Street, the one where they ended up finding Gary in the back yard. When I saw Gary, he was with Kenny and Eddie, the spanish guy who hangs at the Shelter. When we were in the house, we were all shooting up with both dope and coke. (Gary had stopped doing dope while me and Kenny was with him.) While we were there, Gary had passed out. Eddie then decided to give him(Gary) a shot of coke to help revive him I guess.

Like i said, Gary was passed out and after Eddie shot him up, Gary started breathing better and was responding, by responding, I mean he was

Witness(s):

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breathing better, stopped sweating and was talking a little bit.

This was sometime around twenty minutes of eleven, after Gary started responding, me and Eddie went to the Lemon Tree and I brought some burritos, (2) coffees, and a pack of cigarettes. Then I left and went to where I sleep which is the Empire Room, known as the abandoned building on Middlesex St.

I don't know what time I got up, but it was before 7:00 AM as I was able to make breakfast at the shelter. I went to breakfast, after breakfast, I went to the Lemon Tree and then I saw Kenny. Kenny went down to the Liquor Store, Burns, to cash some cans in, I asked him how Gary was doing and Kenny said that he and Gary were talking later in the night.

I told Kenny that I was going to check on Gary while Kenny was going to cash in the cans. I went to the building and then I saw Gary in the backyard, laying face down. I put Gary's jacket over him and then went and told Kenny how I found Gary.

While we had been in the building, ^{GARY'S GARY STOP SHOOTING AROUND THERE} Kenny shot Gary once with coke while Eddie shot him twice with coke. Kenny and Eddie first each shot Gary with a speed-ball, while the last shot given Gary was by Eddie and that was just Coke. Gary was awake the first two times that Kenny and Eddie shot him up, but the last shot he got by Eddie, Gary had passed out. Eddie said that he was shooting Gary up to revive him, I don't know, this was the first time that I had ever been in that situation.

While we were in the building, Gary still had some money with him, I don't know how much but he had some. I don't know what happened to the money after I left.

I know that it was twenty to eleven when I left as there was a wind-up clock in the building as Kenny and Gary use it in order that they get up in time for work.

I have no idea how Gary got out in the back yard, when I went to the Lemon Tree, Eddie had come with me. The only ones left in the building at that time were Kenny and Gary, and Gary was alive when I left but he was in and out of consciousness.

This is all I know about what happened until the next morning when I saw Gary in the back yard of the building. I didn't shoot Gary up at all that night, I have shot him up in the past, but I didn't do it at all that evening.

Witness(s):

[Signature]